



Criminal Justice (Amendment) Act 1981

1981 CHAPTER 27

An Act to amend the law relating to the restriction of reports of committal proceedings in magistrates' courts in cases where there is more than one accused.

[2nd July 1981]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Restrictions
on reports of
committal
proceedings.
1980 c. 43.

1.—(1) At the beginning of subsection (2) of section 8 of the Magistrates' Courts Act 1980 (application for lifting restrictions on reports of committal proceedings) there shall be inserted the words "Subject to subsection (2A) below".

(2) After that subsection there shall be inserted the following subsections—

"(2A) Where in the case of two or more accused one of them objects to the making of an order under subsection (2) above, the court shall make the order if, and only if, it is satisfied, after hearing the representations of the accused, that it is in the interests of justice to do so.

(2B) An order under subsection (2) above shall not apply to reports of proceedings under subsection (2A) above, but any decision of the court to make or not to make such an order may be contained in reports published or broadcast before the time authorised by subsection (3) below."

(3) In relation to any time before the coming into force of the said Act of 1980, the same amendments as are made by subsections (1) and (2) above in section 8 of that Act shall be made in section 3 of the Criminal Justice Act 1967 except that the word "defendants" shall be substituted for the word "accused" wherever it occurs.

(4) The foregoing provisions of this section shall not apply in relation to committal proceedings begun before the commencement of this Act.

2.—(1) This Act may be cited as the Criminal Justice (Amendment) Act 1981.

(2) This Act shall come into force at the expiration of a period of three months beginning with the date on which it is passed.

(3) This Act shall not extend to Northern Ireland.

Short title,
commence-
ment and
extent.